



U.S. Department
of Transportation

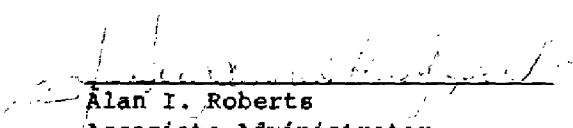
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10040 (PTE)
FIRST REVISION July 31, 1992

In accordance with 49 CFR 107.111 of the Department of Transportation (DOT) Hazardous Materials Regulations the party(ies) listed below is granted the status of party to DOT-E 10040. The expiration date of the exemption for the party(ies) is July 31, 1994.

This party status applies to the party(ies) listed below based on the application(s) submitted in accordance with 49 CFR 107.111 and the public proceeding thereon. All terms of the exemption remain unchanged. This authorization forms part of the exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

OCT 28 1993

(DATE)

Dist: FHWA USCG

EXEMPTION HOLDER

APPLICATION DATE

ZENECA Inc.
Wilmington, DE

August 2, 1993

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



U.S. Department
of Transportation

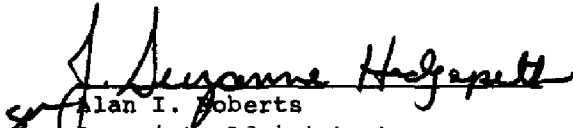
400 Seventh Street, S.W.
Washington, D.C. 20590

Research and
Special Programs
Administration

DOT-E 10040 (EXTENSION)
FIRST REVISION July 31, 1992

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 10040 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to July 31, 1994. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

SEP 04 1992
(DATE)

Dist: FHWA USCG

EXEMPTION HOLDER

APPLICATION DATE

ICI Explosives USA Inc.
Dallas, TX

August 18, 1992



U.S. Department
of Transportation

Research and
Special Programs
Administration

JUL 31 1992

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10040
(FIRST REVISION)

1. ICI Explosives (USA) Inc., Dallas, Texas, (formerly Atlas Powder Company), is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of a flammable liquid for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of a solution containing 10.2% nitroglycerin in a packaging exceeding the quantity limitations in the Department's Hazardous Materials Regulations, and provides no relief from any regulation other than as specifically stated. References to 49 CFR sections in this exemption are to regulations in effect on September 30, 1990.

2. BASIS. This exemption is based on an application from ICI Explosives USA Inc., (formerly Atlas Powder Company) dated September 20, 1990 and supplemental letter dated April 24, 1992, submitted in accordance with 49 CFR 107.105.

3. HAZARDOUS MATERIALS (Descriptor and class). Spirits of nitroglycerin (contains 10.2% nitroglycerin weight) identified as X-F-14; classed as flammable liquid.

4. PROPER SHIPPING NAME (49 CFR 172.101). Spirits of nitroglycerin.

5. REGULATION AFFECTED. 49 CFR 173.133.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, cargo vessel.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a DOT Specification 21P fiber drum with a 2S or 2SL liner not exceeding 30-gallons capacity. This drum must be placed in a DOT Specification 21C drum of at least 35-gallons capacity. The DOT 21C drum must be provided with a 4 mil or greater polyethylene bag (or liner) or must have a minimum 4 mil laminated polyethylene liner. The space between the inner and outer drums must be filled with dry sawdust or Kieselguhr.

8. SPECIAL PROVISIONS.

a. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. A copy of this exemption must be carried aboard each motor vehicle and vessel used to transport packages covered by this exemption.

c. Drivers must have been instructed as to necessary safeguards and proper procedure in the event of unusual delay, fire, or accident.

9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.)

10. EXPIRATION DATE. September 30, 1992.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JUL 31 1992

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Program.

Dist: FHWA